FOR ADOPTION BY MEITY UNDER THE INDIAAI MISSION, AND AS THE MODEL FOR A STATUTORY CLAUSE

Charter of the IndiaAI Safety Institute

Annex A. Draft founding document

Preamble

The IndiaAI Safety Institute was announced in January 2025 under the Safe and Trusted AI pillar of the IndiaAI Mission[1]. The India AI Governance Guidelines name it the main body responsible for guiding the safe and trusted development and use of AI[2]. This charter turns that role into defined functions, governance, powers and resources. Square brackets mark values for the Government to set formally.

Article 1. Name and status

1. The body is the IndiaAI Safety Institute ("the Institute").
2. The Institute is a technical and advisory body. It does not regulate, licence or certify AI systems, and does not decide whether a system may be released.
3. Until a statute provides otherwise, the Institute operates within the IndiaAI Independent Business Division of Digital India Corporation, under the Ministry of Electronics and Information Technology. It keeps the separate budget, governance and independence protections set out in this charter.

Article 2. Mission

The Institute builds India's capacity to understand, measure and reduce risks from advanced AI systems, especially those deployed at scale in India. It also contributes Indian evidence, languages and contexts to international evaluation science.

Article 3. Functions

The Institute shall:

1. **Evaluate:** Evaluate advanced AI systems before and after deployment for risks relevant to India. These include cyber misuse, risks to digital public infrastructure, multilingual and cultural misuse, harmful bias, and autonomous or agentic behaviour.
2. **Research:** Develop evaluation methods, benchmarks and tools, including open India-specific evaluation suites.
3. **Advise:** Provide technical findings and risk assessments to the AI Governance and Economic Group, the Technology and Policy Expert Committee, MeitY and sectoral regulators.
4. **Incidents:** Serve as technical analyst for the national AI incidents database, in coordination with CERT-In for cyber incidents.
5. **Standards:** Support the Bureau of Indian Standards, TEC and sectoral regulators in drafting standards, metrics and testing frameworks.
6. **Capacity:** Train government, regulators and partner institutions in AI evaluation.

7. **International:** Represent India in the international network of AI safety and evaluation institutes, and conclude technical cooperation arrangements with peer institutes.

Article 4. Governance

1. **Governing Board:** The Board sets strategy, approves the annual work plan and budget, and appoints the Director. It is chaired by [the Secretary, MeitY]. Its members are representatives of the Office of the Principal Scientific Adviser, the Ministry of Home Affairs, the Ministry of External Affairs, CERT-In and the Department of Science and Technology, plus [two] independent members with expertise in AI evaluation or security.
2. **Scientific Advisory Panel:** The Panel advises on methods, reviews evaluation reports before publication, and may alert the Board to emerging severe risks. It has [seven to eleven] members chosen for expertise and independence.
3. **Director:** The Director leads the Institute and is accountable to the Board. The Director is appointed for a fixed term of [five] years, renewable once. The Director may be removed only for misconduct or incapacity, by a recorded decision of the Board that states its reasons.
4. **Reporting line:** The Institute reports through the Board to the Minister of Electronics and Information Technology. It is the technical secretariat on AI risk to the AI Governance and Economic Group.

Article 5. Independence and integrity

1. In technical matters, the Institute and its evaluators act impartially and take no instructions on the content of findings.
2. Every member of the Board, the Panel, staff and empanelled evaluators shall file and publish a declaration of interests, update it annually, and recuse themselves from matters where a conflict exists.
3. No evaluator may assess a system from a developer that has employed, funded or contracted them in the previous [two] years without a recorded waiver.
4. The Institute shall not accept funding from developers whose systems it evaluates.

Article 6. Evaluator empanelment

1. The Institute keeps a standing panel of accredited evaluators drawn from partner institutions (IndiaAI Safety Institute Cells), individual experts and approved organisations.
2. Accreditation criteria, conflict-of-interest screening and confidentiality terms are published.
3. Empanelled evaluators work under a standard cooperative agreement covering confidentiality, security and publication.

Article 7. Access to models

1. The Institute shall seek access agreements with developers and deployers of advanced AI systems made available in India.
2. Agreements shall provide:
   - pre-deployment access for a minimum of [30] working days;

    - access to model versions intended for deployment;
    - the right to publish findings under Article 9.
3. Where a statute provides for mandatory evaluation, the Institute is the designated evaluating body. It may request access through APIs or other technical means, subject to safeguards for confidential and proprietary information.

Article 8. Compute and data

1. A reserved share of [5]% of IndiaAI Mission compute capacity, or an equivalent allocation, is set aside each year for the Institute and empanelled evaluators.
2. The Institute may use datasets from the IndiaAI datasets platform for evaluation, subject to its terms.

Article 9. Publication and transparency

1. By default, the Institute publishes a summary of each evaluation within [90] days, with methods, limitations and the version tested. Material whose disclosure would create a serious security risk is redacted, and the fact of redaction is stated.
2. The Institute publishes an annual report on its work, budget and access arrangements, including any refusals of access.
3. Publishing findings does not certify a system as safe.

Article 10. Funding

1. The Institute has a dedicated budget line under the IndiaAI Mission, set for [five] years, of not less than [₹ __ crore] a year.
2. Funds may support in-house staff, empanelled evaluators, partner cells, research grants and compute.

Article 11. Cooperation

The Institute shall cooperate with:

- sectoral regulators, including RBI, SEBI, TRAI and the National Health Authority;
- standards bodies, including BIS and TEC;
- law-enforcement agencies on incident analysis;
- state governments, academia, industry, civil society, and peer institutes abroad.

Article 12. Review and transition

1. The Board commissions an independent review of the Institute's effectiveness every [three] years.
2. When a statute on AI is enacted, the Government shall propose a clause establishing the Institute and incorporating Articles 3, 5, 7 and 9.

Model statutory clause

For inclusion in a future AI law. Modelled on Article 12 of Korea's Framework Act[3] and Articles 68 and 92 of the EU AI Act[45].

> **(1)** The Central Government shall establish an IndiaAI Safety Institute to evaluate the safety and security of advanced artificial intelligence systems.
>
> **(2)** The Institute shall perform the functions set out in its charter, including pre-deployment evaluation of AI systems that meet thresholds prescribed by the Central Government.
>
> **(3)** A provider of an AI system that meets those thresholds shall give the Institute access to the system for evaluation, in the manner and within the time prescribed.
>
> **(4)** The Institute and its evaluators shall act impartially, declare their interests and keep confidential, proprietary information secure.
>
> **(5)** The Central Government shall provide the Institute with adequate resources to perform its functions.

Note

Functions follow pages 31 to 36 of the India AI Governance Guidelines[2]. The independence rules follow EU AI Act Article 68[4]. Access terms follow UK practice[67]. The compute reserve follows the UK model[8] and the companion audit of public compute access terms. The evaluator panel follows the US consortium's cooperative agreements[9] and India's own partner-cell call[10].

Sources

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